

File No.: EXP202212653

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by VIGILANCIA MEDIAMBIENTAL L'ESCURCO, S.L. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated July 27, 2023, and based on the following

FACTS

FIRST: On July 27, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202212653, by virtue of which VIGILANCIA MEDIAMBIENTAL L'ESCURCO, S.L. was imposed:

- for a violation of Article 5.1.c) of the GDPR classified under Article 83.5 of the GDPR, a fine of 500 euros (FIVE HUNDRED EUROS).
- for a violation of Article 5.1.E) of the GDPR classified under Article 83.5 of the GDPR, a fine of 500 euros (FIVE HUNDRED EUROS).
- for a violation of Article 13 of the GDPR classified under Article 83.5 of the GDPR, a fine of 500 euros (FIVE HUNDRED EUROS).

This resolution, which was notified to the appellant on July 28, 2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00092/2023, the following was recorded:

FIRST: It is recorded, according to documentation in the file, that the respondent is responsible for a system of video surveillance cameras that, due to their location and orientation, are capable of capturing images of public roads.

SECOND: It is recorded, according to documentation in the file, that the sign indicating that the area is under video surveillance does not comply with all the requirements established for this purpose by Article 22 of the LOPDGDD, as the information provided is incomplete and insufficient, since it does not indicate the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679.

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THIRD: It is recorded, according to the statement of the respondent, that the images recorded by the cameras are retained for a period of one year.

THIRD: The appellant submitted on August 22, 2023, to this Spanish Agency for Data Protection, a recourse for reconsideration, fundamentally based on:

“The resolution of the sanctioning procedure EXP202212653 with the complainant A.A.A. that our company, with the help of the neighborhood, has already reported its alleged activities to the Mossos d'Esquadra (document attached), and WE REQUEST that the Director attend to this recourse as we are victims of a great injustice in this sanctioning file.

FIRST

We are a security company, specialized in rural surveillance, and we safeguard long weapons (rifles) as well as important information that we must keep confidential, both following the Private Security Law and the current Data Protection Law. We are located in an old town with narrow streets and must protect the doors with cameras to safeguard them from break-ins. We attach a CERTIFICATE OF COMPLIANCE WITH REQUIREMENTS from the National Police where THEY CERTIFY THAT THE

SECURITY MEASURES ARE GOOD AND CORRECT. THEY HAVE BEEN CONDUCTING FREQUENT INSPECTIONS FOR YEARS AND THE SECURITY MEASURES, INCLUDING THE CAMERAS, ARE WELL PLACED AND CORRECT.

SECOND

We attach an inspection from the GUARDIA CIVIL, also to review security measures for gun cabinets, safes, alarms, cameras, AND THE GUARDIA CIVIL INSPECTORATE ALSO CONFIRMS THAT THE SECURITY MEASURES, CAMERAS, GUN CABINETS, ETC., ARE CORRECT.

THIRD

We attach an inspection from the technicians of the Private Security Inspection Unit of the Mossos D'ESQUADRA, and they certify that the security measures are correct, they required the retention of images for one year, with a recorder, and certified that the cameras were well oriented and signposted. WE ATTACH THE INSPECTION DOCUMENT.

FOURTH

The three police bodies that inspected the facilities STATED that the cameras and their systems were correct, in respective IN SITU inspections. Furthermore, both their placement and installation are legalized through a specialized company, SEGURINCAT, which attached the certificates of compliance with the Data Protection Law and provided a signed record by the police of their legalization and correct installation.

FIFTH

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The company has sent a report to the Mossos d'Esquadra regarding the allegedly criminal activities of the complainant, communicated by the neighborhood, which has NEVER complained about the cameras for years. Note the number of complaints since 2016 that have been filed against our company regarding cameras... NONE.

SUMMARY

The company has complied, since its inception, with the Data Protection Laws that have been published, as it receives routine inspections annually from the police bodies inspecting what has been stated. The signs have been in place since the cameras were installed, with phone numbers for citizens to claim their rights. Only the new regulations have changed. THEREFORE, WE COMPLY WITH THE OBLIGATION TO INFORM THE CITIZEN. The cameras NEVER focused on other residences at all, only the areas affecting the entrances of our premises, all of which is periodically reviewed by the police. Due to the instructor from the data protection agency being so insistent, we ordered the alarm review company to check the cameras to attempt to improve their placement, which does not mean acknowledging that they were poorly placed, at all.

The reasons for sanction do not exist as they were completely correct, inspected, and legalized. We do not believe it is legal to make a request for documentation AND NOT INSPECT THE LOCATION by personnel from the DATA PROTECTION AGENCY, and furthermore, the instructor does not trust the police certificates from different state security bodies regarding the state of the cameras, WHICH DO CONDUCT ON-SITE REVIEWS OF THEM.

For all these reasons

WE REQUEST AND BEG MRS. DIRECTOR

To kindly consider our appeal and archive the sanctioning process that has arisen from this file, as the motivation for the sanction is not real but subjective from the instructor, who has not correctly and neutrally assessed our submitted documentation, giving more importance to photographs from a complainant than to the legal certificates of our company and the reports from the police inspection forces.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

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-The appellant alleges that they are a security company, specialized in rural surveillance, and that they safeguard long weapons (rifles) as well as important information that must be kept confidential, both following the Private Security Law and the current Data Protection Law. They are located in an old town with narrow streets and must protect the doors with cameras to guard against break-ins. They attach a certificate of compliance with requirements from the national police, certifying that the security measures are good and correct. They have been conducting frequent inspections for years, and the security measures, including the cameras, are well placed and correct.

The three police bodies that inspected the facilities stated that the cameras and their systems were correct during their respective ON-SITE inspections. Furthermore, both their placement and installation are legalized through a specialized company, SEGURINCAT, which attached the certificates of compliance with the Data Protection Law and included a signed record from the police of their legalization and correct installation.

In this regard, this Agency points out that the present sanctioning file is not motivated by the mere fact of having installed video surveillance cameras, nor is it about having to remove them, but rather to reorient them so that they do not record parts of the public road, as this constitutes an excess typified in Article 5.1.c of the GDPR. The cameras must exclusively view and record access to the appellant's premises.

That is, this file does not address the legitimacy of the installation, but rather the scope of their recording, which, according to the documentation in the file, is excessive.

-The appellant alleges that the technicians from the private security inspection unit of the Mossos d'Esquadra certified that the security measures were correct, required them to retain images for a year, with a recorder, and certified that the cameras were well oriented and marked.

In this regard, once the inspection report was examined, a legible and translated copy into Spanish was requested from the complaining party, this Agency has not found any reference to the mentioned "obligation to retain images for a year," a period that contravenes what is established in Article 22.3 of the LOPDGDD:

"Data shall be deleted within a maximum period of one month from its capture, unless it must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities."

-The complainant alleges that the signs have been in place since the cameras were installed, with phone numbers for citizens to claim their rights. Only the new regulations have changed. Therefore, they complied with the obligation to inform the citizen and that the cameras never focused on other residences at all, only the areas affecting the entrances of their premises.

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In this regard, this Agency refers to the documentation in the file, provided at the time by both the claiming party and the responding party, currently the appealing party, according to which the signs placed to indicate that the area is under video surveillance do not meet all the requirements

established for this purpose by Article 22 of the LOPDGDD, as the information provided is incomplete and insufficient, since it does not indicate the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679.

It is also reiterated that the images in the file reveal an excessive capture of the public road on which the access door to the company is located.

III

Conclusion

Consequently, in this appeal for reconsideration, the appealing party has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

Having regard to the cited provisions and others of general application,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by VIGILANCIA MEDIAMBIENTAL

L'ESCURCO, S.L. against the resolution of this Spanish Agency for Data Protection issued on July 27, 2023, in file EXP202212653.

SECOND: TO NOTIFY this resolution to VIGILANCIA MEDIAMBIENTAL L'ESCURCO, S.L.

THIRD: To warn the sanctioned party that the imposed sanction must be made effective once this resolution is enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period specified in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making a deposit into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with the documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from

the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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